

II. *What formalities are required by the statute.*

1. **Trusts to be proved by, not declared in, writing.** — The principal point to be noticed is, that trusts, as already observed, are not necessarily to be *declared* in writing, but only to be *manifested and proved by* writing; for if there be written evidence of the existence of such a trust, the danger of parol declarations, against which the statute was directed, is effectually removed (*d*). It may be questioned whether

Order XIX, R. 15. As to the former practice see the 7th Edition of this Treatise, p. 51.]

(*d*) *Forster v. Hale*, 3 Ves. 707, *per* Lord Alvanley; S. C. 5 Ves. 315, *per* Lord Loughborough; *Smith v. Matthews*, 3 De G. F. & J. 139.

III. 14. A bill may be open to demurrer, if it shows on the face of it that the Statute of Limitations, the Statute of Frauds, or any other Statute, either bars the right or the remedy of the plaintiff in equity. If the allegations of a bill to enforce an express trust concerning lands clearly imply that the declaration of trust was not in writing, the objection may be taken by demurrer. *Campbell v. Brown*, 129 Mass. 23; *Ahrend v. Odiorne*, 118 Mass. 261, 268; *Slack v. Black*, 109 Mass. 496; *Walker v. Locke*, 5 Cush. 90; *Randall v. Howard*, 2 Black, 585; *Farnham v. Clements*, 51 Me. 426; 1 Dan. Ch. Pr. 5th Eng. ed. 480, note. It appears to have been at times doubted whether the Statute of Limitations could be set up by way of demurrer, or whether the objection must not be taken by plea. But it is now clearly and conclusively settled, that an objection arising out of *any statute* is as much matter of demurrer as any other matter of law. So that, if on the facts alleged by the bill it appears that an existing statute bars the plaintiff either of his right or of his remedy, the objection may be taken by demurrer as well as by plea. But if the bill does not show affirmatively that the case is not within the statute, such offence must be specially pleaded, and cannot be taken by demurrer. *Beckwith v. Young*, 4 Drew. 1, 3; *Wood v. Midgley*, 5 De G. M. & G. 41; *Heys v. Astley*, 4 De G. J. & S. 34; see *Catling v. King*, 5 Ch. Div. 600; *Futcher v. Futcher*, 50 L. J. Ch. 735, *per* Fry, J; *Pullen v. Snelus*, 48 L. J. C. P. 394.

"Before the passing of the Judicature Acts there was a difference between the practice at law and the practice in equity, in cases like the present. At law, if the contract was denied, it was a matter of evidence whether the contract were one which could be sued upon, or whether the remedy was barred by the statute. But in equity, if the defendant intended to rely upon the Statute of Frauds or any other special statute, he was compelled to make a specific averment of his intention." *Mellish, L. J.* in *Clarke v. Callow*, 46 L. J. Q. B. at p. 54, C. A., and in *Catling v. King*, 5 Ch. Div. at p. 662.

In a recent case in the House of Lords it was declared that there is a distinction between the Statute of Limitations and the Statute of Frauds. The latter must be pleaded. The title to the estate, not the mere right to proceed for its recovery, is affected by the former. If the plaintiff's statement of claim shows, on the face of it, that the time within which a title to land must be asserted has gone by, the defence of the Statute of Limitations may be raised on demurrer. And a defence so used is sufficient without any distinct reference to the statute. *Dawkins v. Penrhyn*, 4 App. Cas. 51. On this case Lord